

Section I Project Summary

DATE: February 14, 2022

CASE#: MS_2021-0002

DATE FILED: 6/17/2021

OWNER/APPLICANT: RURAL COMMUNITIES HOUSING DEVELOPMENT CORPORATION (RCHDC)

AGENT: CORT MUNSELLE, MUNSELLE CIVIL ENGINEERING

REQUEST: Two lot minor subdivision of a 4.1± acre parcel to create one parcel of 2.37± acres (Lot 1) and one parcel of 1.73± acres (Lot 2).

ENVIRONMENTAL DETERMINATION: Negative Declaration

LOCATION: 0.6± miles northeast of the City of Ukiah at the intersection of Brush Street (CR 217) and North Orchard Avenue (City of Ukiah), located at 365 Brush Street, Ukiah; APN: 002-101-31.

STAFF PLANNER: RUSS FORD

Section II Project Description

INTRODUCTION: The proposed project requests the division of an existing 4.1± acre lot into two separate lots of 2.37± acres and 1.73± acres to facilitate the construction of multi-family housing.

PROJECT OBJECTIVES: The Rural Communities Housing Development Corporation (hereafter 'RCHDC') has previously completed several Boundary Line Adjustments to facilitate the construction of multi-family housing along Brush Street (CR 217), known as Orr Creek Commons Phases 1 and 2. Construction of unit 1 has completed and construction of unit 2 is underway. The division of this parcel will allow RCHDC to apply for a third unit of multi-family housing, at least a portion of which will be designated 'affordable' or 'low income' housing (less than 50%).

SETTING AND LOCATION: The subject site lies within the sphere of influence of the City of Ukiah at the intersection of Brush Street and North Orchard Avenue, immediately adjacent to the city's incorporated boundary. The site is served by the Ukiah Valley Sanitation District for wastewater treatment and though technically outside its district boundary, domestic water is provided by the City of Ukiah. Domestic water for Orr Creek Commons Phases 1 and 2 was also provided by the City of Ukiah, and on July 29, 2021, they provided an updated comment letter stating that the City has the resources and intention to support the additional housing proposed by RCHDC.

The site itself is currently undeveloped, but was previously used for materials storage for the construction of Orr Creek Commons Unit 2. The parcels to the west and south of the subject site are heavily developed with residential uses, and the parcels to the north contain several mini-storage lots and another multi-family residential development intended for use by agricultural workers. The eastern and northeastern most parcels are currently undeveloped. The entire project site is classified as a type AE flood zone on FEMA's Flood Insurance Rate Maps (FIRM), with a base flood elevation of approximately 607 feet above sea level. Prior to construction of Orr Creek Commons Phases 1 and 2, fill dirt was added to the site to bring the at grade elevation above the calculated base flood elevation. The site is approximately 600 feet west of the US 101 corridor and is visible from the highway, but cannot be accessed directly from it.

Orr's Creek, an existing riparian corridor, forms the southern boundary of the project site. As part of the Orr Creek Commons Unit 1, the land immediately adjacent to the creek was dedicated to the City of Ukiah for use as open space and a riparian buffer. This project would only affect the portion of the remaining land outside of that existing dedication, and does not propose changes to the buffer zone.

BASELINE CONDITIONS: The California Environmental Quality Act (CEQA) Guidelines Section 15125 requires that the Project Description identify existing baseline physical conditions to evaluate the significance of the project impacts. In the case of the subject parcel, baseline conditions include existing multi-family residential development on two adjacent sites, as well as existing transportation and utility infrastructure commonly associated with urban development.

Section III Environmental Checklist.

"Significant effect on the environment" means a substantial, or potentially substantial, adverse change in any of the physical conditions within the area affected by the project, including land, air, water, minerals, flora, fauna, ambient noise, and aesthetic significance. An economic or social change by itself shall not be considered a significant effect on the environment. A social or economic change related to a physical change, may be considered in determining whether the physical change is significant (CEQA Guidelines, Section 15382).

Accompanying this form is a list of discussion statements for all questions, or categories of questions, on the Environmental Checklist (See Section III). This includes explanations of "no" responses.

ENVIRONMENTAL FACTORS POTENTIALLY AFFECTED: The environmental factors checked below would be potentially affected by this project, involving at least one impact that is a "Potentially Significant Impact" as indicated by the checklist on the following pages.

☐ Aesthetics	☐ Agriculture and Forestry Resources	☐ Air Quality
☐ Biological Resources	☐ Cultural Resources	☐ Energy
☐ Geology / Soils	☐ Greenhouse Gas Emissions	☐ Hazards & Hazardous Materials
☐ Hydrology / Water Quality	☐ Land Use / Planning	☐ Mineral Resources
☐ Noise	☐ Population / Housing	☐ Public Services
☐ Recreation	☐ Transportation / Traffic	☐ Tribal Cultural Resources
☐ Utilities / Service Systems	☐ Wildfire	☐ Mandatory Findings of Significance

An explanation for all checklist responses is included, and all answers take into account the whole action involved, including off site as well as on-site; cumulative as well as project level; indirect as well as direct; and construction as well as operational impacts. The explanation of each issue identifies (a) the significance criteria or threshold, if any, used to evaluate each question; and (b) the mitigation measure identified, if any, to reduce the impact to less than significance. In the checklist the following definitions are used:

"Potentially Significant Impact" means there is substantial evidence that an effect may be significant.

"Potentially Significant Unless Mitigation Incorporated" means the incorporation of one or more mitigation measures can reduce the effect from potentially significant to a less than significant level.

"Less Than Significant Impact" means that the effect is less than significant and no mitigation is necessary to reduce the impact to a lesser level.

"No Impact" means that the effect does not apply to the Project, or clearly will not impact nor be impacted by the Project.

INITIAL STUDY/ENVIRONMENTAL REVIEW: This section assesses the potential environmental impacts which may result from the project. Questions in the Initial Study Checklist are stated and answers are provided based on analysis undertaken.

I. AESTHETICS. Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Have a substantial adverse effect on a scenic vista?	☐	☐	☐	☒
b) Substantially damage scenic resources, including, but not limited to, trees, rock outcroppings, and historic buildings within a state scenic highway?	☐	☐	☐	☒

I. AESTHETICS. Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
c) Substantially degrade the existing visual character or quality of the site and its surroundings?	☐	☐	☐	☒
d) Create a new source of substantial light or glare which would adversely affect day or nighttime views in the area?	☐	☐	☒	☐

a-c) No Impact: The project site is immediately adjacent to the incorporated City of Ukiah and still well within the associated urbanized areas surrounding it. Three large multi-family residential developments are immediately adjacent to this proposed site, as well as a multi-acre mini storage and other associated residential and urban developed uses. The southern boundary of the parcel formed by Orr's Creek may be considered a visual resource, but an existing buffer area intended to protect it has already been created via dedication of a buffer zone along the creek to the City of Ukiah. This project affects only the remaining portion of the land outside of the dedication, and so no adverse impact to any scenic vista will occur as a result. Previous grading associated with construction and construction storage for Orr Creek Commons Phases 1 and 2 has occurred on the site, and no scenic resources are present, and it is not near a designated state scenic highway.

d) Less Than Significant Impact: The development of a new multi-family housing complex facilitated by this land division may increase the potential for degradation of the existing visual character, but those concerns are less than significant given the existing development of the adjacent properties and site location. New lighting associated with residential development must meet dark sky compliance requirements and be shielded and downcast, in compliance with Policy RM-134 of Chapter 4 of the County's General Plan. However, any addition of new lights are likely to be inconsequential given the existing density of nearby residential development, much of which has existed for decades and was built well before dark sky compliances existed.

II. AGRICULTURE AND FORESTRY RESOURCES. Would the project:	Potentially Significant Impact	Less Than Significant with Mitigation Incorporated	Less Than Significant Impact	No Impact
a) Convert Prime Farmland, Unique Farmland, or Farmland of Statewide Importance (Farmland), as shown on the maps prepared pursuant to the Farmland Mapping and Monitoring Program of the California Resources Agency, to non-agricultural use?	☐	☐	☐	☒
b) Conflict with existing zoning for agricultural use, or a Williamson Act contract?	☐	☐	☒	☐
c) Conflict with existing zoning for, or cause rezoning of, forest land (as defined in Public Resources Code section 12220(g)), timberland (as defined by Public Resources Code section 4526), or timberland zoned Timberland Production (as defined by Government Code section 51104(g))?	☐	☐	☐	☒
d) Result in the loss of forest land or conversion of forest land to non-forest use?	☐	☐	☐	☒